REFUND SHARK / SIMULATED SAMPLE

Agreement excerpts for PDF testing

This layout fixture contains selected public Atlassian SLA quotes used by the demo. It is not a complete contract.

Source: https://www.atlassian.com/legal/sla

Atlassian must provide the following monthly uptime percentage to Customer

Jira (Premium and Enterprise)

Cloud Plan Service Level Commitment Premium 99.9%

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subtracting from 100% the percentage of Downtime Minutes (as defined below) out of the total minutes in the relevant calendar month

All calendar months are measured in the UTC time zone.

“Downtime Minute” occurs when the Error Rate in a given minute is greater than 5%. “Error Rate” means, over a given 1-minute period, the percentage of Customer’s requests to Covered Experiences resulting in an error out of Customer’s total requests to those Covered Experiences. […] Jira (Premium and Enterprise) View Issue Create Issue Edit Issue View Board […] Covered Experiences include browser-based experiences only (not, e.g., integrations, API calls or mobile versions).

- Premium Plan Cloud Products - Monthly Uptime Percentage Service Credit* Less than 99.9% but greater than or equal to 99.0% 10% Less than 99.0% but greater than or equal to 95.0% 25% Less than 95.0% 50%

Percentage of the monthly fees attributed to the affected Eligible Cloud Product. The percentage of monthly fees attributable to an Eligible Cloud Product when purchased together with other Products under one SKU will be determined by Atlassian.

The aggregate maximum Service Credit applied to an invoice will not exceed 100% of the amount invoiced for the affected Cloud Product in that invoice billing period (which, since Service Credits are applied to future payments, is not the month in which the affected Cloud Product was unavailable).

Customer is not entitled to Service Credits if Customer is in breach of the Agreement (as defined below) or has not provisioned the relevant Cloud Product. The Service Level Commitment does not include unavailability to the extent due to: (a) Customer’s use of the Cloud Products in a manner not

authorized under the Agreement; (b) force majeure events or other factors outside of Atlassian's reasonable control, including internet access or related problems; (c) Customer equipment, software, network connections or other infrastructure; (d) Customer Data or Customer Materials (or similar concepts defined in the Agreement); (e) Third-Party Products; or (f) routine scheduled maintenance or reasonable emergency maintenance as stated in the Atlassian Maintenance Policy. The Service Level Commitment does not apply to (i) sandbox instances or Free or Beta Products (or similar concepts in the Agreement) or (ii) features excluded from the Service Level Commitment in the applicable Documentation.

provided that Customer's account is fully paid up, without any overdue payments or disputes […] submit a technical support request during the incident […] You can only request SLA compensation for production instances of Premium and Enterprise apps. Trial and sandbox instances are ineligible for SLA compensation.

within fifteen (15) days after the end of the calendar month in which the alleged failure occurred

Customer must submit a ticket at https://support.atlassian.com with all fields fully and accurately completed […] From the dropdown What can we help you with?, select Compensation Requests. […] If multiple incidents occur for one app during a given month, include all of them in one compensation ticket.

Atlassian will apply the Service Credit, which will be calculated as described in Appendix B, against a future payment due from Customer for the affected Cloud Product […] No refunds or cash value will be given for unused Service Credits.